



Linda S. Adams
Acting Secretary for
Environmental Protection

California Regional Water Quality Control Board
Central Valley Region
Katherine Hart, Chair

1685 E Street, Fresno, California 93706
(559) 445-5116 • FAX (559) 445-5910
<http://www.waterboards.ca.gov/centralvalley>



Edmund G. Brown Jr.
Governor

16 February 2011

CERTIFIED MAIL

7008 1830 0003 4615 8503

Mr. John LaMar, District Manager
North of River Sanitary District No. 1
204 Universe Avenue
Bakersfield, CA 93308

CERTIFIED MAIL

7008 1830 0003 4615 8510

Mr. Duffy Sill
Sill Properties
1508 18th Street, Suite 320
Bakersfield, CA 93301

**TRANSMITTAL OF ADOPTED ORDERS NORTH OF RIVER SANITARY DISTRICT
NO 1 AND SILL PROPERTIES WASTEWATER TREATMENT FACILITY, KERN
COUNTY**

Enclosed is an official copy of Order No. R5-2011-0011, as adopted by the California Regional Water Quality Control Board, Central Valley Region at its 3 February 2011 meeting.

Within about a week, official copies of the above Orders will be posted on the Regional Board's website at:

http://www.waterboards.ca.gov/centralvalley/board_decisions/adopted_orders/

If you have any questions, please contact Denise Soria at (559) 444-2488.

W. DALE HARVEY
Senior Engineer
RCE No. 55628

Enclosures: Order No. R5-2011-0011

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

SPECIAL ORDER NO. R5-2011-0011
MODIFYING WASTE DISCHARGE REQUIREMENTS ORDER NO. R5-2009-0088
FOR
NORTH OF RIVER SANITARY DISTRICT NO. 1
AND
SILL PROPERTIES
WASTEWATER TREATMENT FACILITY
KERN COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Central Valley Water Board), finds that:

1. On 13 August 2009, the Central Valley Water Board adopted Waste Discharge Requirements (WDRs) Order No. R5-2009-0088 for North of River Sanitary District No. 1 (District) to regulate its wastewater treatment facility (WWTF) located in the Northwest Quarter of Section 36, Township 28 South, and Range 24 East, MDB&M in Kern County.
2. WDRs Order No. R5-2009-0088 authorize a discharge of 7.5 million gallons per day (mgd) of undisinfected secondary recycled water to four 32.5-acre unlined storage ponds (storage capacity of 1,488 acre-ft) and a Reclamation area of approximately 2,380 acres of farmland, of which 1,740 acres (Assessor's Parcel Nos. 088-210-01, 088-180-02, 088-180-34, 088-180-06, 088-180-07, 088-180-10, 088-180-12, 090-240-01, 090-240-20, 090-240-18, 090-240-21, 090-240-04, 090-140-08, 090-240-08, 090-240-07, 090-240-17, and 090-270-07) are owned and operated by Sill Properties. The other 640 acres (Assessor's Parcel Nos. 088-210-06, and 088-210-05) are owned by the District and operated by Sill Properties.
3. In a letter dated 27 April 2010, the District requested that the Central Valley Water Board revise WDRs Order No. R5-2009-0088 to reflect that Assessor's Parcel No. 090-240-07 (40 acres) be removed from the farmland receiving recycled water as it is no longer owned and operated by Sill Properties. Additionally the District requested to add two new parcels to the farmland receiving recycled water (Assessor's Parcel Nos. 090-240-03 (100 acres) and 090-240-05 (60 acres)). These new parcels are owned and operated by Sill Properties.
4. The new reclamation area reflecting the addition of the new parcels is of approximately 2,500 acres, of which 1,860 acres (Assessor's Parcel Nos. 088-210-01, 088-180-02, 088-180-34, 088-180-06, 088-180-07, 088-180-10, 088-180-12, 090-240-01, 090-240-20, 090-240-18, 090-240-21, 090-240-04, 090-140-08, 090-240-08, 090-240-17, 090-270-07, and 090-240-03, and 090-240-05) are owned and operated by Sill Properties. The other 640 acres (Assessor's Parcel Nos. 088-210-06, and 088-210-05) are owned by the District and operated by Sill Properties. A revised Attachment A Site Map is attached hereto and made part of this Order by reference.

5. The District adopted an Initial Study and Negative Declaration on 18 October 1989, in accordance with the California Environmental Quality Act (CEQA), for the expansion of its WWTF to a capacity of 12 mgd. According to the Negative Declaration, treated wastewater will be used for reclamation on farmland owned by the District, Sill Properties, and possibly other local farmers. Additionally, the Negative Declaration documents the District's expressed interest in purchasing additional land for expansion of the reclamation area.
6. The Central Valley Water Board, as a responsible agency under CEQA regulations at section 15381 of Title 14 of the California Code of Regulations, has reviewed the Initial Study and Negative Declaration and included effluent limits, discharge specifications, groundwater limits, and other provisions and requirements in WDRs Order No. R5-2009-0088 that will be protective of water quality. There is nothing unique or different about the parcels being added to the 2,340 acres that will continue to receive recycled water or the 40 acres that are being removed from the reclamation area; thus, the addition and removal of parcels under this Special Order will have an insignificant impact on water quality, particularly because the reclamation area will be slightly larger and the loading rates to the reclamation areas will be less.
7. The California Department of Public Health (DPH) requires recyclers of treated municipal wastewater to submit an engineering report detailing the use of recycled water, contingency plans, and safeguards, pursuant to section 60323 of Title 22 of the California Code of Regulations.
8. WDRs Order No. R5-2009-0088 includes Provision H.27 requiring the District to submit a Title 22 Engineering Report approved by DPH. A Title 22 Engineering Report dated February 2010 was prepared and submitted to DPH by AECOM on behalf of the District. By letter dated 27 September 2010, DPH notified the Central Valley Water Board that the Title 22 Engineering Report was incomplete. The District needs to update its Title 22 Engineering Report and must address the new parcels with the update.
9. All comments pertaining to the discharge were heard and considered in a public meeting.

IT IS HEREBY ORDERED that pursuant to California Water Code Sections 13263 and 13377, WDRs Order No R5-2009-0088 is amended as follows:

1. Finding No. 8 is revised to reflect the correct reclamation area and Assessor's Parcel Numbers as described in Finding No. 4 of this Order.
2. Wastewater shall not be applied to the newly incorporated parcels until the Discharger provides written documentation that the California Department of Public Health has approved the Title 22 Engineering Report for the reclamation area, including the new parcels.

3. A revised Attachment A Site Map is attached and made part of this Order by reference.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 3 February 2011.

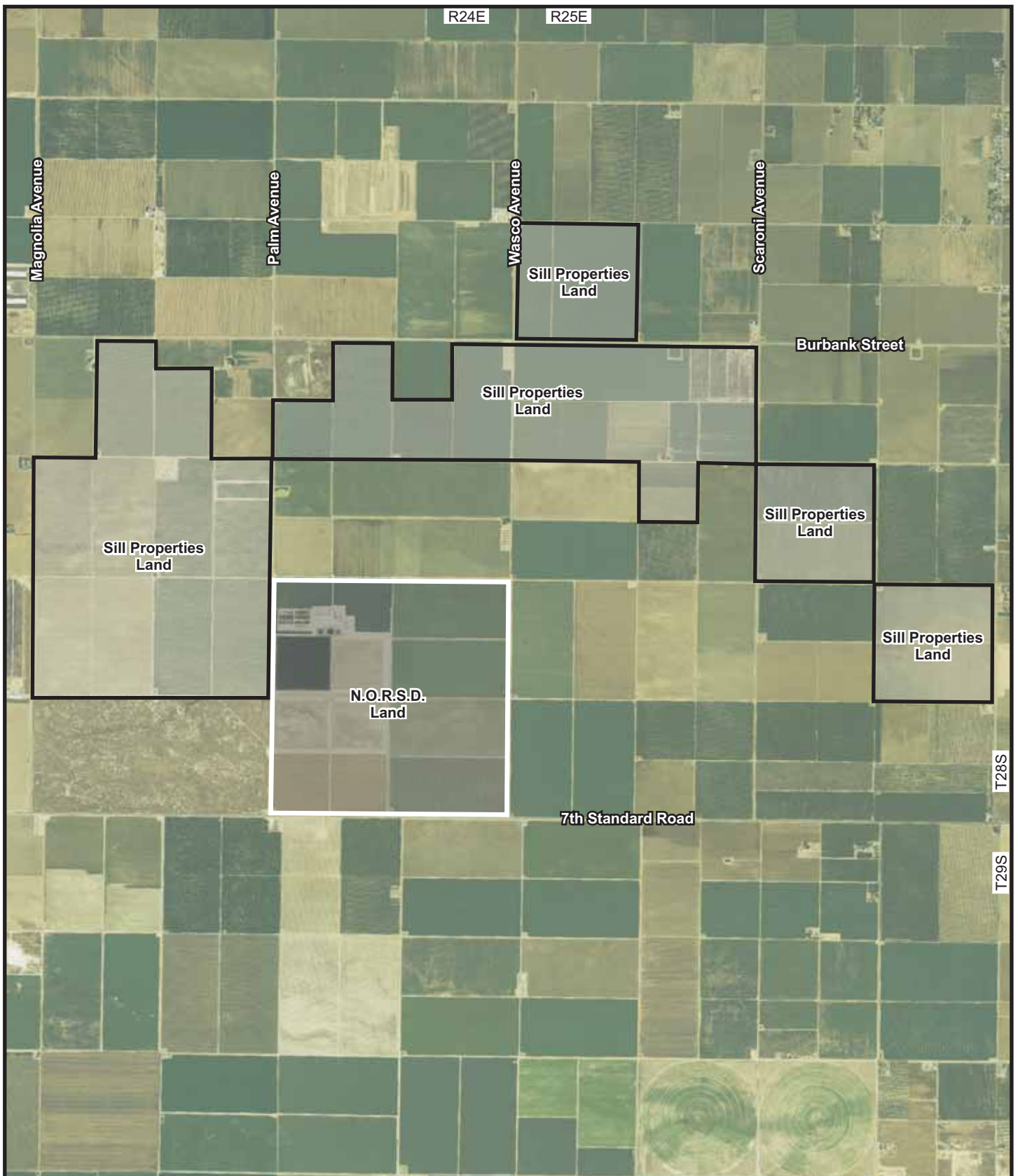
A handwritten signature in cursive script, reading "Pamela Creedon".

PAMELA C. CREEDON, Executive Officer

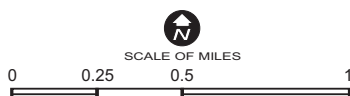
Order Attachments:

A Site Location Map

DMS/WDH: 12/2/2010



Map Source:
NAIP Aerial Photograph (2005)



REVISED SITE MAP
SPECIAL ORDER NO. R5-2011-0011
FOR
NORTH OF RIVER SANITARY DISTRICT NO. 1
AND
SILL PROPERTIES
WASTEWATER TREATMENT FACILITY AND
WATER RECLAMATION
KERN COUNTY

ATTACHMENT A